

**BEFORE THE
FEDERAL MARITIME COMMISSION**



AENEAS EXPORTING LLC,

Claimant,

v.

Docket No. 22-11

**HONEYBEE INTERNATIONAL INC., and
ALL AMERICA SHIPPING,**

Respondent.

VERIFIED COMPLAINT

1. Claimant Aeneas Exporting LLC (“Aeneas Exporting”), by and through its undersigned owner, brings this Verified Complaint against Respondent **HONEYBEE INTERNATIONAL INC., and ALL AMERICA SHIPPING** (“Respondent”) pursuant to violations of 46 U.S.C. §§ 41102 and 41104 and pursuant to the Federal Maritime Commission’s (“FMC”) authority to permit the filing of complaints under Section 11(a) of the Shipping Act, 46 U.S.C. § 41301(a), in response to Respondent’s violations of the Shipping Act.

2. Aeneas Exporting alleges upon information and belief the following:

PARTIES AND OTHER ENTITIES

3. Aeneas Exporting is an Indiana limited-liability company that exports vehicles from the United States to foreign countries including Libya. Aeneas Exporting’s primary place of business is located at 2511 E. 2nd Street, Apt. 16, Bloomington, IN 47401. Claimant’s email address is shipping.manager@aeneasexporting.com.

4. Claimant is and at all relevant times has been a cargo owner as that term is defined in 46 U.S.C. § 40102(22).

5. Respondents a United States corporation formed and existing under the laws of the state of California. HONEYBEE INTERNATIONAL INC.'s primary place of business is located at 7815 Somerset Blvd. Paramount, Ca 90723. Respondent's affiliate, ALL AMERICA SHIPPING's primary place of business is located 867 Alpha ST. Duarte, CA 91010 USA Respondents' email address is honeybeinc@aol.com.

JURISDICTION

6. FMC has subject-matter jurisdiction over this action pursuant to the Shipping Act of 1984, 46 U.S.C. § 40101, *et seq.*

7. FMC has personal jurisdiction over Respondent as an ocean common carrier, non-vessel-operating common carrier, ocean freight forwarder, and ocean transportation intermediary, as those terms are defined in 46 U.S.C. § 40102.

MEMORANDUM OF FACTS

8. Beginning on or about November 10, 2021, Aeneas Exporting entered in a contract with HONEYBEE INTERNATIONAL INC. and its affiliate ALL AMERICA SHIPPING to ship for Aeneas Exporting nine vehicles to Libya (*See*, Respondent's limited power contract, attached as **Exhibit A**). Respondents sent an email showing the rate of shipping as \$5,250.00 (*See*, Respondent's email, attached as **Exhibit B**). Accordingly, Aeneas Exporting delivered cargo of nine vehicles to ALL AMERICA SHIPPING.

9. On November 19th, HONEYBEE INTERNATIONAL INC. made the booking and shipped the three vehicles under Booking number 60756906, container number HLBU 1841803 at the rate that was agreed on \$5,250.00 (*See*, Respondent's email, attached as **Exhibit C**).

10. On December 1st, Respondent raised the rate to \$5,600.00 without declaring the reason and without filling it with the FMC (*See*, Respondent's email, attached as **Exhibit D**).

11. Claimant told Respondent that HAPAG LLOYD gives quotes for every three months and there is no other reason to raise the rate (*See*, HAPAG LLOYD's Quotation that they provide to all the shippers, attached as **Exhibit E**). Claimant had his vehicles at the warehouse and had no coerced to accept the forced new rate. Otherwise, Claimant must pay for transportation to another warehouse and pay Respondent \$\$3,000.00 storage fees.

12. Respondent shipped the six remaining vehicles under Booking number 63421091, container number TEMU7402028 and Booking 63090239, container number GESU6322689 (*See*, Bill of Ladings, attached as **Exhibit E**). Respondent added \$1,200.00 more on the first rate.

13. On March 11th, Respondent send another invoice of \$520.00 for each container alleging that there is a new charge of Congestion Surcharge Destination.

14. Claimant told Respondent that this charge does exist from the beginning on the quotation that HAPAG-LLOYD gives (*See*, Quotation of HAPAG_LLOYD, attached as **Exhibit F**).

15. Claimant responded saying that the extra charges should have been included from the beginning and adding them later is a fraud to cut the commission of the Claimant.

16. Claimant responded also saying that he has already invoiced the buyers of the vehicles and adding the new charges now is a fraud since Respondent knows from beginning that the Congestion Surcharge Destination Fees are presented within the quote from HAPAG-LLOYD.

17. On January 28th, before the issue gets escalated, Claimant delivered seven vehicles to be shipped to Libya.
18. Respondent could not get containers to ship the cargo due to the congestion of the port of Long Beach.
19. On February 24th, Respondent informed Claimant that Claimant must move his vehicles out of the warehouse with paying \$3,500.00 storage fees for the seven vehicles (*See*, Wire has been made, attached as **Exhibit G**).
20. . If Claimant did not remove the vehicles, Respondent will start charging Claimant \$140.00 storage daily for the 7 vehicles.
21. Claimant paid the storages fees of \$3,500.00 and moved the vehicles to Houston due to no one in California wants to receive the vehicles because of the port's congestion.
22. Claimant had to pay \$6,000.00 dispatch fees to move the vehicles to a warehouse in Houston (*See*, Dispatch Invoice, attached as **Exhibit H**).

CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C.A. § 41102(c)

23. Aeneas Exporting incorporates by reference each of the facts and allegations stated in paragraphs 1 through 21 set forth herein.

24. 46 U.S.C. § 41102(c) prohibits a common carrier or ocean transportation intermediary from failing to “establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

25. Respondents have failed to establish, observe, or enforce just and reasonable regulations and practices relating to its receipt, handling, storing, and delivery of Aeneas Exporting's property. Respondents have failed to enforce just and reasonable regulations and

practices relating by adding \$660.00 extra payment on each container after they got the cargo in their warehouse. Claimant forced to pay the unlawful amount because of the losses that would occur if Claimant moved the cargo to another warehouse.

26. Respondents have failed to enforce just and reasonable regulations by forcing Claimant to pay storage fees or Respondents will hold the cargo.

27. Respondents have failed to enforce just and reasonable regulations by forcing Claimant to pay \$3,500.00 to get the cargo released from the Respondents' warehouse

28. Because of Respondent's wrongful and unjust actions, Aeneas Exporting has suffered damages in the amount of \$10,160.00. Aeneas Exporting has also suffered damages to its business in an amount to be established at hearing.

COUNT III: FRAUD

29. Respondents had committed a fraud by giving Claimant a rate and after Respondents received the cargo, Respondents have raised the rate while the rate of HAPAG LLOYD ends on December 30th.

30. Respondent had committed a fraud when they charged Claimant \$3,500.00 while Respondents had not mentioned that in the contract with Claimant when two parties entered the contract.

COUNT IV: COERCION

31. Respondents had committed coercion by holding the cargo of Claimant. Respondents coerced Claimant to pay \$660.00 to release two containers. Claimant had to pay the unlawful charges to release the cargo.

32. Respondents had committed coercion by forcing Claimant to pay storage fees of \$3,500.00 to release seven vehicles or Respondents will hold the cargo and charge

Claimant \$140.00 storage for every day. As a result of coercion, Claimant had to pay the storage fees and pay \$6,000.00 for transportation to move the cargo out of the Respondents' warehouse.

DAMAGES

33. Aeneas Exporting has been actually and materially injured by Respondents for financial damages of at least \$10,160.00 as a direct result of Respondent's repeated violations of 46 U.S.C. § 41102(c), 46 U.S.C. § 41104(a)(3), Fraud and Coercion. Specifically, Aeneas Exporting has suffered damages and continues to suffer damages in excess of \$15,160.00 as a direct result of Respondent's repeated violations.

PRAYER FOR RELIEF

WHEREFORE, Aeneas Exporting respectfully prays for relief from the Commission as follows:

1. An Order compelling Respondents to answer the charges made herein and scheduling a hearing in Washington, DC during which the Commission may receive evidence in this matter;
2. An Order, after due investigation and hearing, finding that Respondents has violated 46 U.S.C. § 41102(c), 46 U.S.C. § 41104(a)(3), 46 CFR § 545.4 Fraud and Coercion.;
3. An Order compelling Respondents to cease and desist its wrongful, discriminatory, unjust, and retaliatory activities against Aeneas Exporting;
4. An Order compelling Respondents to release any and all property or containers belonging to Aeneas Exporting in Libya;

6. Such other and further relief as the Commission determines to be just and proper.

Dated: March 14, 2022,

AENEAS EXPORTING LLC,

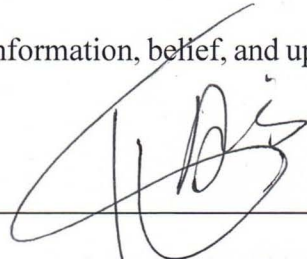
By: /s/ Anis A Houssein

Anis A Houssein
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1348 Danchetz Ct, Rahway, NJ 07065
Telephone: (773) 814-8912

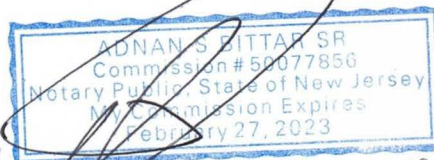
Owner for Claimant Aeneas Exporting LLC

VERIFICATION

Mr. Anis Houssein, Shipping Manager of Aeneas Exporting LLC, pursuant to 28 USC § 1746, hereby declares under penalty of perjury that he has read the foregoing Verified Complaint and that the facts stated therein to the best of his knowledge, information, and belief further declares that the foregoing is true and correct on information, belief, and upon information received from others.



Anis Houssein, Shipping Manager
Aeneas Exporting LLC
1348 Danchetz Ct, Rahway, NJ 07065
anis.houssein@gmail.com



CHECKED MAR 12 2022



Anis Houssein, Shipping Manager
Aeneas Exporting LLC
2511 E 2nd St., Apt. 16
Bloomington, IN 47401
anis.houssein@gmail.com

Sworn to before me this
day of , 2022

Notary Public

FEDERAL MARITIME COMMISSION

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AFFIDAVIT OF ANIS HOUSSEIN

Under penalties provided by law, I, Anis Houssein, certify that the factual allegations set forth herein are true and correct to the best of my knowledge.

1. I am Shipping Manager of Aeneas Exporting LLC (“Aeneas Exporting”), am above the age of 18, and can competently testify to the facts set forth in this Affidavit, of which I have personal knowledge, or a belief based on personal knowledge.

2. Aeneas Exporting’s business depends on delivering cargo to customers on time. Customers who do not receive their shipments on time often complain, requests refunds, or stop doing business with Aeneas Exporting.

3. Because Aeneas Exporting is managed by me in the United States, where I am located, Aeneas Exporting’s ability to develop new business in Libya is limited. As a result, Aeneas Exporting depends on repeat business from its existing customers in Libya.

4. Many of Aeneas Exporting’s customers are car resellers. This means that Aeneas Exporting ships vehicles to them, and they sell those cars to third parties. When shipments are late, these customers get upset because they have their own clientele and schedules to satisfy.

5. It can take several weeks for Aeneas Exporting to get a vehicle for a customer and deliver it to Libya. During this time, the price/value of that vehicle may drop substantially. It is crucial to Aeneas Exporting's business that the vehicles are delivered to customers before the vehicles' value changes too much.

6. Respondents coerced Aeneas Exporting to pay unlawful charges by holding the cargo under Respondent's shipping name in the containers and in the Respondents' warehouse.

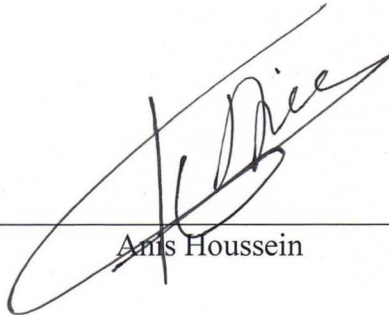
7. Aeneas Exporting suffered financial harm.

8. Aeneas Exporting emotionally suffered from Respondents' coerced acts forcing Aeneas Exporting to pay or they will add more charges or held the cargo of Aeneas Exporting.

9. Aeneas Exporting prays for relief and prays from the Commission to take actions to prevent Respondents from committing the same actions against other customers.

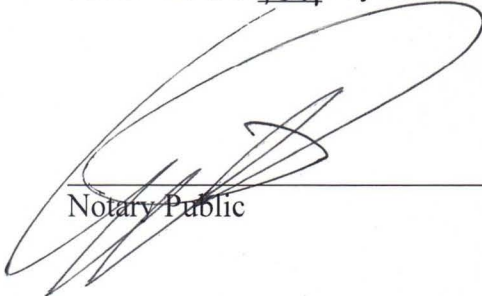
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FURTHER AFFIANT SAYETH NAUGHT.


Anis Houssein

Subscribed and sworn

before me this 12th day of March, 2022.


Notary Public

ADNAN S BITTAR SR.
Commission # 50077856
Notary Public, State of New Jersey
My Commission Expires
February 27, 2023

CHECKED MAR 12 2022

